

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

WILLIAM PAULING and CHARLES BURTON,**INDEX NO.: 24865/2015E**

Plaintiffs,

– against –

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER NICHOLAS
NOVAK, POLICE OFFICER DAVON ALSTON,
POLICE OFFICER JOHN DOE and POLICE OFFICER
JOHN ROE,****AMENDED VERIFIED
COMPLAINT**

Defendant(s).

Plaintiffs, by their attorney, **NEIL WOLLERSTEIN, ESQ.**, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

1. That at all times the Plaintiff **WILLIAM PAULING** was and is a resident of Kings County, State of New York.

2. That at all times hereinafter mentioned, the defendant, **CITY OF NEW YORK**, hereinafter referred to as “CITY”, was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

3. That at all times hereinafter mentioned the defendant, **NEW YORK CITY POLICE DEPARTMENT**, hereinafter referred to as “NYPD”, was and is an agency of the defendant, **CITY**.

4. That on and prior to 8/16/14 and at all times hereinafter mentioned the defendant, **POLICE OFFICER NICHOLAS NOVAK** (Shield No. 8030), hereinafter referred to as “NOVAK” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the **CITY** and NYPD.

5. That on and prior to 8/16/14 and at all times hereinafter mentioned the defendant, **POLICE OFFICER DAVON ALSTON** (Tax No. 938326), hereinafter referred to as “ALSTON” was

and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

5. That on and prior to 8/16/14 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN DOE, hereinafter referred to as "DOE" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. That on and prior to 8/16/14 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as "ROE" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. Upon information and belief, at all times hereinafter mentioned, and on 8/16/14, at approximately 8:30 p.m., several police officers including but not limited to NOVAK, ALSTON, DOE and ROE were on duty and in the vicinity of Morris Avenue and East 171st Street, County of Bronx, City and State of New York.

8. Upon information and belief, at all times hereinafter mentioned, and on 8/16/14, at approximately 8:30 p.m., the above mentioned Police Officers were acting within the scope of their employment and under the direction of the CITY and NYPD as its agents, servants and/or employees.

9. Upon information and belief, defendants NOVAK, ALSTON, DOE and ROE were all assigned to the 44th Precinct.

10. That on and prior to 8/16/14 NOVAK, ALSTON, DOE and ROE were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

11. That on and prior to 8/16/14, at approximately 8:30 p.m., and all relevant times herein after, NOVAK, ALSTON, DOE and ROE individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

12. That on 8/16/14, at approximately, 8:30 p.m., Plaintiff **WILLIAM PAULING** was lawfully in the vicinity of Morris Avenue and East 171st Street, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway. In point of fact, Plaintiff **WILLIAM PAULING** was not in possession of any contraband or acting unlawful in anyway.

13. That on 8/16/14, at approximately, 8:30 p.m., in the vicinity of Morris Avenue and East 171st Street, County of Bronx, State of New York, NOVAK, ALSTON, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **WILLIAM PAULING** for no reason and summarily stopped, frisked, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

14. Upon information and belief NOVAK, ALSTON, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **WILLIAM PAULING**.

15. Upon information and belief, Plaintiff **WILLIAM PAULING** was subjected to a strip search while in the custody of defendants without any legal reason or justification.

16. That Plaintiff **WILLIAM PAULING** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime or crimes.

17. Thereafter, Plaintiff **WILLIAM PAULING** remained incarcerated for several hours and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

18. Plaintiff **WILLIAM PAULING** sustained physical and emotional pain and injuries

as a result of this incident.

19. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **WILLIAM PAULING** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

20. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

21. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF WILLIAM PAULING

22. Plaintiff **WILLIAM PAULING** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 -- 22 with the same force and effect as if fully set forth at length herein.

23. That on or about 8/16/14, at approximately 8:30 p.m., the Plaintiff **WILLIAM PAULING** was without just cause, probable cause or provocation, and with reckless, negligent and

callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, NOVAK, ALSTON, DOE and ROE, their agents, servants and/or employees, and in particular, by NOVAK, ALSTON, DOE and ROE.

24. That on or about 8/16/14, at approximately 8:30 p.m., the Plaintiff **WILLIAM PAULING** while lawfully in the vicinity of Morris Avenue and East 171st Street, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, NOVAK, ALSTON, DOE and ROE of having committed a crimes or crimes.

25. That on or about 8/16/14, and upon arresting the Plaintiff **WILLIAM PAULING** and depriving him of his liberty, CITY, NYPD, NOVAK, ALSTON, DOE and ROE took the Plaintiff **WILLIAM PAULING** to a police station in the County of Bronx and entered him on the records as under arrest.

26. That on or about 8/16/14, the CITY, NYPD, NOVAK, ALSTON, DOE and ROE further caused Plaintiff **WILLIAM PAULING** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

27. That on or about 8/16/14 Plaintiff **WILLIAM PAULING** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

28. That at all times hereinafter mentioned the actions of CITY, NYPD, NOVAK, ALSTON, DOE and ROE as described above were carried out in a reckless, deliberate, willful,

wanton, malicious and grossly negligent manner.

29. That by reason of the foregoing, Plaintiff **WILLIAM PAULING** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF WILLIAM PAULING

30. Plaintiff **WILLIAM PAULING** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 29 with the same force and effect as if fully set forth at length herein.

31. That on or about 8/16/14, a criminal complaint was issued by the CITY, NYPD, NOVAK, ALSTON, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

32. That on or about 8/16/14 a criminal action against Plaintiff **WILLIAM PAULING** was commenced by CITY, NYPD, NOVAK, ALSTON, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

33. That solely as a result of the aforesaid, the Plaintiff **WILLIAM PAULING'S** life was interfered with.

34. That the criminal action against Plaintiff **WILLIAM PAULING** was continued for an extended period of time by defendants with malice and bad faith.

35. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **WILLIAM PAULING**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

36. That the criminal action against Plaintiff **WILLIAM PAULING** was terminated

favorably by dismissal.

37. That the actions of CITY, NYPD, NOVAK, ALSTON, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

38. That by reason of the foregoing, Plaintiff **WILLIAM PAULING** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF WILLIAM PAULING

39. Plaintiff **WILLIAM PAULING** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 38 with the same force and effect as if fully set forth at length herein.

40. That on or about 8/16/14, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **WILLIAM PAULING** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated, photographed and handcuffed by the CITY, NYPD, NOVAK, ALSTON, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

41. That on or about 8/16/14 CITY, NYPD, NOVAK, ALSTON, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, NOVAK, ALSTON, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **WILLIAM PAULING** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **WILLIAM PAULING** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive

manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **WILLIAM PAULING** and caused such battery in and about his head, neck, back, body and limbs.

42. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **WILLIAM PAULING** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

43. That as a result of the aforesaid assault and battery the Plaintiff **WILLIAM PAULING** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

44. That at all times hereinafter mentioned the actions of CITY, NYPD, NOVAK, ALSTON, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

45. That by reason of the foregoing, Plaintiff **WILLIAM PAULING** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF WILLIAM PAULING**

46. Plaintiff **WILLIAM PAULING** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 --45 with the same force and effect as if fully set forth

at length herein.

47. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to NOVAK, ALSTON, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

48. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

49. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

50. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

51. That by reason of the above, the Plaintiff **WILLIAM PAULING** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

52. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

53. That by reason of the foregoing, Plaintiff **WILLIAM PAULING** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF WILLIAM PAULING

54. Plaintiff **WILLIAM PAULING** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-53 with the same force and effect as if fully set forth at length herein.

55. In arresting Plaintiff **WILLIAM PAULING**, police officers including but not limited to NOVAK, ALSTON, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

56. In arresting Plaintiff **WILLIAM PAULING**, police officers including but not limited to NOVAK, ALSTON, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **WILLIAM PAULING** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

57. As a result of the abuse of process by defendants herein, Plaintiff **WILLIAM PAULING** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

58. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

59. That by reason of the foregoing, Plaintiff **WILLIAM PAULING** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLES BURTON

60. Plaintiff **CHARLES BURTON** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 59 with the same force and effect as if fully set forth at length herein.

61. That at all times the Plaintiff **CHARLES BURTON** was and is a resident of Bronx County, State of New York.

62. That on 8/16/14, at approximately, 2:00 p.m., Plaintiff **CHARLES BURTON** was lawfully in the vicinity of 450 Cross Bronx Expressway, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway. In point of fact, Plaintiff **CHARLES BURTON** was not in possession of any contraband including illegal narcotics.

63. That on 8/16/14, at approximately, 2:00 p.m., in the vicinity of 450 Cross Bronx Expressway, County of Bronx, State of New York, NOVAK, ALSTON, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **CHARLES BURTON** for no reason and summarily stopped, frisked, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

64. Upon information and belief NOVAK, ALSTON, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and

arresting Plaintiff **CHARLES BURTON**.

65. Upon information and belief, Plaintiff **CHARLES BURTON** was subjected to a strip search while in the custody of defendants without any legal reason or justification.

66. That Plaintiff **CHARLES BURTON** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime or crimes.

67. Thereafter, Plaintiff **CHARLES BURTON** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

68. Plaintiff **CHARLES BURTON** sustained physical and emotional pain and injuries as a result of this incident.

69. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **CHARLES BURTON** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

70. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

71. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with.

72. That on or about 8/16/14, at approximately 2:00 p.m., the Plaintiff **CHARLES BURTON** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, NOVAK, ALSTON, DOE and ROE, their agents, servants and/or employees, and in particular, by NOVAK, ALSTON, DOE and ROE.

73. That on or about 8/16/14, at approximately 2:00 p.m., the Plaintiff **CHARLES BURTON** while lawfully in the vicinity of 450 Cross Bronx Expressway, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, NOVAK, ALSTON, DOE and ROE of having committed a crime or crimes.

74. That on or about 8/16/14, and upon arresting the Plaintiff **CHARLES BURTON** and depriving him of his liberty, CITY, NYPD, NOVAK, ALSTON, DOE and ROE took the Plaintiff **CHARLES BURTON** to a police station in the County of Bronx and entered him on the records as under arrest.

75. That on or about 8/16/14, the CITY, NYPD, NOVAK, ALSTON, DOE and ROE further caused Plaintiff **CHARLES BURTON** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

76. That on or about 8/16/14 Plaintiff **CHARLES BURTON** was aware of his arrest and

confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

77. That at all times hereinafter mentioned the actions of CITY, NYPD, NOVAK, ALSTON, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

78. That by reason of the foregoing, Plaintiff **CHARLES BURTON** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLES BURTON

79. Plaintiff **CHARLES BURTON** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 78 with the same force and effect as if fully set forth at length herein.

80. That on or about 8/16/14, a criminal complaint was issued by the CITY, NYPD, NOVAK, ALSTON, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

81. That on or about 8/16/14 a criminal action against Plaintiff **CHARLES BURTON** was commenced by CITY, NYPD, NOVAK, ALSTON, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

82. That solely as a result of the aforesaid, the Plaintiff **CHARLES BURTON'S** life was interfered with.

83. That the criminal action against Plaintiff **CHARLES BURTON** was continued for an extended period of time by defendants with malice and bad faith.

84. That solely as a result of the false arrest, assault, battery, false imprisonment and

malicious prosecution of the Plaintiff **CHARLES BURTON**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

85. That the criminal action against Plaintiff **CHARLES BURTON** was terminated favorably by dismissal.

86. That the actions of CITY, NYPD, NOVAK, ALSTON, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

87. That by reason of the foregoing, Plaintiff **CHARLES BURTON** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR AN EIGHTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLES BURTON**

88. Plaintiff **CHARLES BURTON** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 87 with the same force and effect as if fully set forth at length herein.

89. That on or about 8/16/14, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **CHARLES BURTON** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated, photographed and handcuffed by the CITY, NYPD, NOVAK, ALSTON, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

90. That on or about 8/16/14 CITY, NYPD, NOVAK, ALSTON, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, NOVAK, ALSTON, DOE and ROE, within the scope of their employment, did intentionally, willfully and

maliciously assault and batter the Plaintiff **CHARLES BURTON** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **CHARLES BURTON** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **CHARLES BURTON** and caused such battery in and about his head, neck, back, body and limbs.

91. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **CHARLES BURTON** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

92. That as a result of the aforesaid assault and battery the Plaintiff **CHARLES BURTON** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

93. That at all times hereinafter mentioned the actions of CITY, NYPD, NOVAK, ALSTON, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

94. That by reason of the foregoing, Plaintiff **CHARLES BURTON** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLES BURTON

95. Plaintiff **CHARLES BURTON** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 -- 94 with the same force and effect as if fully set forth at length herein.

96. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to NOVAK, ALSTON, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

97. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

98. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

99. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad

disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

100. That by reason of the above, the Plaintiff **CHARLES BURTON** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

101. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

102. That by reason of the foregoing, Plaintiff **CHARLES BURTON** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLES BURTON

103. Plaintiff **CHARLES BURTON** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-102 with the same force and effect as if fully set forth at length herein.

104. In arresting Plaintiff **CHARLES BURTON**, police officers including but not limited to NOVAK, ALSTON, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

105. In arresting Plaintiff **CHARLES BURTON**, police officers including but not limited to NOVAK, ALSTON, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **CHARLES BURTON** or a collateral

advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

106. As a result of the abuse of process by defendants herein, Plaintiff **CHARLES BURTON** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

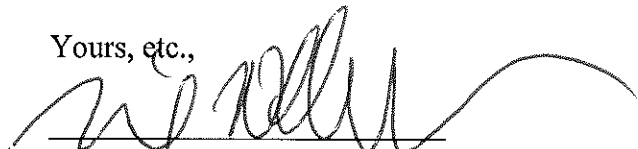
107. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

108. That by reason of the foregoing, Plaintiff **CHARLES BURTON** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **WILLIAM PAULING** demands judgment against the defendants on the First Cause of Action through the Fifth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, the Plaintiff **CHARLES BURTON** demands judgment against the defendants on the Sixth Cause of Action through the Tenth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: Bronx, New York
 October 5, 2015

Yours, etc.,



NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiffs
895 Sheridan Avenue
Bronx, New York 10451
Tel: (718) 588-1300
Fax: (917) 522-9703

ATTORNEY VERIFICATION

NEIL WOLLERSTEIN, an attorney duly admitted to practice before the courts of the State of New York affirms the following to be true pursuant to CPLR 2106 and under the penalties of perjury:

1. The undersigned, an attorney admitted to practice in the Courts of the State of New York states that he is retained on behalf of plaintiff **WILLIAM PAULING**.
2. That affirmant has read the foregoing **AMENDED COMPLAINT** and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged on information and belief; and that as to those matters affirmant believes them to be true.
3. Your affirmant further says that the reason this verification is made by affirmant and not the plaintiff is that the plaintiff is not within the County of Bronx where affirmant maintains his office.

Dated: Bronx, New York
October 5, 2015

A handwritten signature in black ink, appearing to read 'N. Wollerstein', written over a horizontal line.

NEIL WOLLERSTEIN

VERIFICATION

STATE OF NEW YORK }

SS:

COUNTY OF BRONX }

I, Charles Burton, being duly sworn, say:

1. I am the plaintiff in the within action.

2. I have read the attached Amended Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true.

Charles Burton

Sworn to before me this

6th day of October, 2015

NEIL WOLLERSTEIN
Notary Public, State of New York
No. 02WO6104776
Qualified in New York County
Commission Expires February 2, 2016

Neil Wollerstein

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM PAULING and CHARLES BURTON,

Plaintiffs,

– against –

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER NICHOLAS NOVAK, POLICE OFFICER DAVON ALSTON, POLICE
OFFICER JOHN DOE and POLICE OFFICER JOHN ROE,**

Defendant(s).

AMENDED VERIFIED COMPLAINT

NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiffs
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Bronx, New York 10451
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